

Richmond, California address. Yet it is unclear how Plaintiff arrived at this address. There are no filings in the docket to corroborate this. The proof of service of process indicated service on counsel, the Moore Law Group, out of Santa Ana, California.

It is unclear why Plaintiff neglected to serve the Moor Law Group.

Disposition

This Motion will be dropped.

2. 9:00 AM CASE NUMBER: L24-02267

CASE NAME: CITIBANK, N.A. VS. KARLA GOMEZ

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion, on 2/6/26, to set aside notice of settlement and enter judgment pursuant to stipulation. The Motion was originally scheduled for 5/5/26, but on that date, this court found that Plaintiff had not properly served Defendant with notice and continued the Motion to 7/28/26. The court also ordered Plaintiff to provide notice to the Defendant.

As of this writing, there is no evidence that Plaintiff has provided any notice to Defendant of the Motion or of the hearing.

Disposition

This Motion will be dropped.

3. 9:00 AM CASE NUMBER: L25-07986

CASE NAME: CAPITAL ONE, N.A. VS. TIFFANY HOLLISTER

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY:

***TENTATIVE RULING**

Plaintiff filed a Motion, on 1/22/26, to set aside dismissal and enter judgment under stipulation. The Motion hearing was scheduled for 4/28/26, and on that date, this court found that Plaintiff had not provided notice to Defendant. Specifically, though the service was purportedly done by mail, there was no evidence to corroborate that the mailing address (in Richmond) was in fact that of Defendant.

This court continued the Motion to 7/28/26 and ordered Plaintiff to provide notice to Defendant.

For the hearing on 7/28/26, Plaintiff filed a proof of service on 5/1/26. However, the proof indicates mail service at the same address in Richmond. And, once again, there is no evidence that this is in fact the address of Defendant.

The court wonders if Plaintiff read the tentative ruling from 4/28/26.

Disposition

This Motion will be dropped.

4. 9:00 AM CASE NUMBER: L25-12147

CASE NAME: CITIBANK N.A. VS. CESAR RIOS

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,650.27, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$583.61.